

The arbitration agreement's express protection of not only the moving party, but also of "any employee, officer, alleged agent, director, affiliate, subsidiary or sister company relationship" is also of some concern but is limited to claims arising from the employment relationship. The primary case relied upon by Plaintiff on this issue involved a far broader protection of a university "or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise." The court noted that the arbitration provision would require her to arbitrate claims against a university employee that are unrelated to the university or the plaintiff's employment there. (*Cook, supra*, 102 Cal.App.5th at 327.)

The court finds some low amount of substantive unconscionability, but not enough together with the limited procedural unconscionability to cause it to find the arbitration agreement sufficiently unconscionable to be unenforceable.

Joinder, Stay and Dismissal

The motion to compel arbitration, and joinder, of Plaintiff's individual claims against any and all of the named defendants is GRANTED. The claims compelled to arbitration include any PAGA claims individual to the named Plaintiff, whether expressly asserted or implied. (*Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, granted review at 566 P.3d 234 (but confirmed by the California Supreme Court as remaining citeable as persuasive authority during the pendency of this review).

No waiver of class action is contained in the arbitration agreement nor is arbitration limited to an individual claim or is there a restriction on consolidating or aggregating multiple claims in arbitration. However, as Plaintiff's individual claims are compelled to arbitration she is no longer a suitable representative for the proposed class. Class counsel does not identify a substitute representative. Accordingly, the court exercises its discretion to dismiss the class claims.

Pending the completion of the arbitration of all of Plaintiff's individual claims, the court stays all representative PAGA claims alleged in this action.

All future calendared dates are vacated. The matter is calendared for arbitration review on July 15, 2027 at 8:30.

LEITZKE vs. CITY OF VALLEJO, et al.
Case No. CU23-02170

Motion for Sanctions

TENTATIVE RULING

Parties to appear.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002